



File No.: EXP202206857

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On June 14, 2022, a complaint was filed with the Spanish Agency for Data Protection against CONAFDIN, S.L.U., with NIF B80831936 (hereinafter, the respondent).

The reasons for the complaint are as follows:

The complainant is contesting the property management of the community of owners to which he belonged until January 31, 2017, the date on which he sold the property by notarial deed. He states that in December 2021, upon first accessing his bank online, he discovered that he could see, in addition to his current account, the account of the community of owners to which he belonged; both accounts being held at the same banking institution. He asserts that since December 2021, he has contacted the respondent several times explaining the situation and that he has been informed that in February 2022 a meeting of owners would be held and the change of account holders would be communicated. This meeting has not yet taken place, as they have informed the complainant. As of the date of the complaint, he continues to have access to the current account of the community of owners to which he no longer belongs.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out to the respondent in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on June 29, 2022, as evidenced by the acknowledgment of receipt in the file.

On July 22, 2022, this Agency received a response indicating the following:

“Complaint received against the property management of the Community of Owners of ***COMMUNITY.1. As the complainant is aware, the banking entity requires each owner to be present in person to cancel access to the community account.

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The problem lies in the fact that the banking entity demands the joint presence of all owners. It is almost impossible despite our efforts for outgoing and incoming owners to request permission from their workplaces for the management; therefore, the complainant has been advised to cancel access to the account in person through his personal account branch, thus the reported facts are not due to negligence in our functions or negligence in the handling of the office's data, as the complainant was removed from the CONAFDIN database as soon as he communicated the sale.”

THIRD: On September 14, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

In the statements contained in both the complaint filed by the complainant and the response to the forwarding made by the respondent, it is acknowledged that the complainant had access to the

account of the Community of Owners ***COMMUNITY.1.

On December 2, 2022, three requests for information were issued directed to the Community of Owners of ***COMMUNITY.1; to the respondent, as Administrator of said Community of Owners; and to the complainant.

On December 17, 2022, the response to the information request from CONAFDIN, as administrator of the Community of Owners, was received, in which, after indicating that it provides a copy of the CIF of the Community of Owners of ***COMMUNITY.1, the following statements were made:

“FIRST.- Background

On June 14, 2022, the complainant, Mr. A.A.A., stated that he requested his banking entity to provide him with the “online” keys for his bank account to access his current account movements electronically. When he connected to this “online” platform, he observed that he had access to the bank account of the Community of Owners of ***COMMUNITY.1 despite having transferred ownership of the property he owned in that community on January 31, 2017.

He also states that subsequently he went to the offices of CONAFDIN S.L., UNIPERSONAL, where he claims he was told that “there were 3 owners and that they had not proceeded to make the change at the banking entity because they had not realized it, that at the end of February 2022 a meeting of owners was scheduled and that after that they would go by the...”

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3/8

bank to deliver the Minutes of the Meeting and proceed to remove the claimant from the community bank account.”

The claimant continues by stating that in March 2022, he contacted CONADFIN S.L. UNIPERSONAL again and was informed that “the meeting had not yet taken place and that it would be held in May 2022,” and later in May, he states that he was told that “the meeting had still not been held and that as soon as it was held, they would take the minutes to the bank.”

Well, in the Minutes of the Meeting held on May 5, 2022, where the owners met in a second call at the Ordinary General Meeting, as prescribed by the LPH, in item THIRD “Renewal of the Board of Government,” the following is stated: “3rd.- Renewal of the Board of Government for completing its annual term, the current Board of Government ceases in its position, positions that will be occupied according to the election rotation system established in the community by the following owners:

PRESIDENT: Mr. B.B.B.

VICE PRESIDENT: Ms. C.C.C.

These owners will have access to the community current account with their signature along with that of any other owner, as agreed in the previous meeting for the purpose of validating the checks.

Given that the existing agreement maintained the signatures of several owners and one of them sold the property, it is necessary to proceed with the change of signatures as soon as possible, therefore, the members of the Board are requested to coordinate a visit to the Ibercaja entity where the Community is held, and it is reminded that they must attend together at the request of the banking entity.”

As DOCUMENT NO. 2, the Minutes of the Meeting dated May 5, 2022, are provided. Likewise, we provide as DOCUMENT NO. 3 the Minutes of the Meeting dated March 24, 2008, by which it is agreed that “all owners have a signature on the community current account.”

SECOND.- Material impossibility of attending to the request of the claimant, Mr. A.A.A., due to causes beyond our control as reflected in the Minutes of the Meeting dated May 5, 2022, CONADFIN S.L. had already requested and asked by phone prior to the Ordinary Meeting of ***COMMUNITY.1 to the financial entity Ibercaja for the blocking and removal of the claimant's data, as provided by Organic Law 5/2018 of December 5 on Personal Data Protection and Guarantee of Digital Rights, after which the financial entity informed us of the imperative to have the holders appear in person at the financial entity of IBERCAJA to rectify the access that the claimant had to the current account of

***COMMUNITY.1.

In addition to the telephone conversations held with the financial entity, requests were made via emails dated July 13, 2022, and September 5, 2022, to proceed with the blocking, rectification, and removal of the data, expressly requesting Ibercaja that the Board of Government of

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4/8

The Community was recently created, and it was urgently necessary to annul the signature and access to the accounts of the Claimant's Community, reiterating the urgency of the claim in light of the passivity of the financial entity as well as the material impossibility of requiring all holders to come and sign together in person for the withdrawal of the signature, considering the age and personal circumstances of the members of the ***COMMUNITY.1. The emails mentioned earlier are attached as DOCUMENT No. 4.

Following our requests, on September 8, 2022, the financial entity finally proceeded to remove the Claimant's signature. The update of the current account contract of the ***COMMUNITY.1 is attached as DOCUMENT No. 5.

On December 22, 2022, a response was received to the information request from the ***COMMUNITY.1 Homeowners Association, which contains the same statements made by the responding party CONADFIN S.L., transcribed above and reproduced here.

Additionally, it is stated in that document that "Prior to this meeting, the Bank had already been informed of the change of ownership of the property (...), with D^a. D.D.D. registered as the new owner, as stated in the minutes dated 01/03/2017 that were sent to the Bank at that time. Despite this, the banking entity should not have deactivated the old owner, D. A.A.A., of which the community and the administration, CONADFIN S.L.U., were not aware, nor even the Claimant himself, who detects that he continues as a joint authorized signatory on the community account when he is registered in the Ibercaja APP after opening a personal current account. The minutes of the Meeting dated March 24, 2008, are submitted as documents to this writing, by which it is agreed that "all owners shall have a signature on the community current account" and the minutes dated March 1, 2017, where the new owner of the property is listed.

On January 16, 2023, the Claimant submitted a written response to the request in which he states that he limits himself to expressing that: "When accessing his bank account electronically, he no longer sees on the screen the reasons and balance of that Community. The property management that handles the issues of that Community must have resolved it with their banking entity due to the number of times I have contacted them to resolve this matter. Therefore, and for the reasons stated above, I would appreciate it if you would be so kind as to proceed to close this file, thus settling the matter."

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR)

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5/8

to each supervisory authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this

organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Security of processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data promptly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. When assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless he or she is required to do so by Union or Member State law."

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6/8

III

Principles Relating to Processing

Letter d) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

- d) accurate and, where necessary, kept up to date; every reasonable step must be taken to ensure that personal data that is inaccurate with respect to the purposes for which it is processed is erased or rectified without delay ('accuracy');

IV

Lawfulness of Processing

Article 6 of the GDPR, which regulates the lawfulness of processing, establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the

exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

2. Member States may maintain or introduce more specific provisions to adapt the application of the rules of this Regulation with regard to processing under paragraph 1, letters c) and e), laying down more precise requirements for processing and other measures to ensure lawful and fair processing, including other specific situations of processing under Chapter IX.

3. The basis for processing referred to in paragraph 1, letters c) and e), shall be established by:

a) Union law, or

b) the law of the Member States applicable to the controller.

The purpose of the processing shall be determined in that legal basis or, with respect to the processing referred to in paragraph 1, letter e), shall be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, among others: the general conditions governing the lawfulness of processing by the controller; the types of data subject to processing; the data subjects affected; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures for processing, including measures to ensure lawful and fair processing, such as those relating to other specific situations of processing under Chapter IX. Union law or the law of the Member States shall pursue a public interest objective and shall be proportionate to the legitimate aim pursued.

4. When processing for a purpose other than that for which the personal data were collected is not based on the consent of the data subject or on Union law or the law of the Member States that constitutes a necessary and proportionate measure in a democratic society to safeguard the objectives set out in Article 23, paragraph 1, the controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data were initially collected, shall take into account, among other things:

a) any connection between the purposes for which the personal data have been collected and the purposes of the intended further processing;

b) the context in which the personal data have been collected, in particular regarding the relationship between the data subjects and the controller;

c) the nature of the personal data, in particular when special categories of personal data are processed, in accordance with Article 9, or personal data relating to criminal convictions and offenses, in accordance with Article 10;

d) the possible consequences of the intended further processing for the data subjects;

e) the existence of appropriate safeguards, which may include encryption or pseudonymization."

V

Conclusion

The entity complained against, CONAFDIN, as the processor of the Community of Owners to which the complainant belonged, was legitimized to process their data. Once the complainant sold the property located in the Community managed by the respondent, it was communicated to the Bank where the current account of that Community is domiciled.

At the moment the complainant communicated that upon accessing their Bank (the same one where the Community's account is domiciled) they could see the movements of the community account, the respondent convened a meeting of owners for the newly elected President and Secretary to go to the Bank and deregister the outgoing ones. This occurred in May 2022.

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8/8

Yes, even before the filing of the complaint, and which prevents the claimant from accessing the data of the Community of Property Owners.

Furthermore, the claimant has expressed agreement with the solution to the problem and communicated that they would not insist on the filed complaint.

Therefore, based on the indications in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the aforementioned, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to CONAFDIN, S.L.U., and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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